

24PSCV02145 24PSCV02145

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-06-24

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Case Number: 24PSCV02145 Hearing Date: June 24, 2026 Dept: 6

CASE

NAME: Vincent

Scigliano v. Quinn Company, et al.

Defendant/Cross-Complainant

Quinn Company's Motion for Summary Judgment

TENTATIVE

RULING

The Court DENIES Defendant/Cross-Complainant Quinn Company's Motion for Summary Judgment.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a products liability case. On July 2, 2024, plaintiff Vincent Scigliano (Plaintiff) filed this action against defendant Quinn Company (Defendant) and Does I through XX, alleging causes of action for strict product liability, express & implied warranty, and negligence – product liability.

On September 3, 2024, Quinn Company filed a cross-complaint against cross-defendants Roes 1 through 25, alleging causes of action for implied indemnity and equitable indemnity. On July 23, 2025, Quinn Company filed an amendment to the cross-complaint, naming Cal Valley Construction, Inc. in place of Roe 1.

On March 12, 2026, Defendant moved for summary judgment. On June 4, 2026, Plaintiff opposed the motion. On June 12, 2026, Defendant replied to the opposition.

LEGAL

STANDARD

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute. [Citations.]” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, italics in original and quoting Code Civ. Proc., § 437c, subd. (c).) “The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings. [Citations.]” (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, brackets and internal quotation marks omitted.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established...” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.)

Once the defendant has met that burden, the burden shifts to the plaintiff “to show that a triable issue of one or more material facts exists as to the cause of

action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion “shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Ibid.; see also Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Courts

“liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

EVIDENTIARY OBJECTIONS

The Court OVERRULES

Plaintiff's evidentiary objections based on Code of Civil Procedure section 2015.5. Mark Young's declaration indicates it is executed under penalty of perjury under the laws of the State of California, which is one of the two ways to comply with Code of Civil Procedure section 2015.5. (Young Decl., p. 2; Code Civ. Proc., § 2015.5, subd. (b).) Defendant also rectified the declaration under penalty of perjury omission from Paul C. Kwong's declaration with the reply declaration. (Kwong Reply Decl. (6/12/26), p. 2.)

The Court SUSTAINS Plaintiff's

evidentiary objections to paragraphs 2, 3, and 4 of Mark Young's declaration for failure to set forth facts showing Mark Young has personal knowledge to support those statements made. (Young Decl., ¶¶ 2-4; Evid. Code, § 702; Code Civ. Proc., § 437c, subd. (d).)

The Court SUSTAINS Plaintiff's

objections to paragraphs 3, 5, 7, 9, and 10 of Paul C. Kwong's declaration for failure to set forth facts showing Paul C. Kwong has personal knowledge to support those statements made. (Kwong Decl., ¶¶ 3, 5, 7, 9-10; Evid. Code, § 702; Code Civ. Proc., § 437c, subd. (d).) The Court OVERRULES the remainder of Plaintiff's objections to Paul C. Kwong's declaration on the grounds that the Court does not rely on those portions of Paul C. Kwong's declaration in reaching its decision herein.

To the extent Plaintiff tries to assert evidentiary objections in response to Defendant's separate statement, the Court OVERRULES those objections, as separate statements are not evidence. (See UMF 16-17, 19-21.)

DISCUSSION

Summary of Undisputed Material Facts

On July 7, 2022, Plaintiff was allegedly injured when driving a vehicle in which the braking system either malfunctioned or failed to perform properly. (UMF 1-3.) Plaintiff is an employee of MGE Underground who provided the subject vehicle that Plaintiff was using. (UMF 4-5.) MGE Underground obtained the subject vehicle from Cal Valley Construction who rented/leased it from Defendant during the time period in which the accident happened. (UMF 6-7.) Defendant did not enter into a rental agreement for the subject vehicle with either MGE Underground or Plaintiff. (UMF 8.) Defendant is in the business of renting/leasing vehicles to customers. (UMF 11.) Defendant is not and has not been in the business of designing, manufacturing, marketing, or distributing the brake system installed on the subject vehicle, and did not design, manufacture, market, or distribute the braking system installed on the subject vehicle. (UMF 13-14.) Defendant had no influence on the manufacturing, distribution, or bringing the braking system to the market. (UMF 16.)

First Cause of Action – Strict Product Liability

"Generally, to establish a strict products liability claim, the plaintiff must prove that 'there was a defect in the manufacture or design of the product and that such defect was a proximate cause of the injuries.' [Citation.]" (Sherman v. Hennessy Indus., Inc. (2015) 237 Cal.App.4th 1133, 1152, fn. 7, italics in original.)

Defendant moves for summary judgment on the grounds that there are no triable issues of material fact. Defendant contends Plaintiff has submitted no facts or evidence to support a strict products liability theory against Defendant. Defendant contends it did not design, manufacture, sell or distribute the braking system of the vehicle. Defendant contends Plaintiff has presented no evidence Defendant was involved in the manufacturing, sale or distribution of the braking system on the vehicle. Defendant contends Plaintiff has provided no evidence that Defendant had any influence on the manufacturing

or distribution of the braking system. Defendant contends Plaintiff has provided no evidence that Defendant had any role in bringing the braking system to the market.

The Court finds Defendant has not met its initial burden in establishing the absence of a triable issue of material fact. “Sellers of all products are responsible for defects that exist in the product when it leaves the seller’s control and is placed on the market. Thus, the seller of a completed product is strictly liable for any defect in the completed product, regardless of the ‘source’ of the defect; ‘a manufacturer of a completed product cannot escape liability by tracing the defect to a component part supplied by another. [Citation.]” (Johnson v. United States Steel Corp. (2015) 240 Cal.App.4th 22, 33 (Johnson).) Strict products liability extends to rental companies. (See Price v. Shell Oil Co. (1970) 2 Cal.3d 245,252-254 (Price); Westlye v. Look Sports, Inc. (1993) 17 Cal.App.4th 1715, 1747 [ski rental company].) “Our analysis of these authorities leads to the conclusion that for the doctrine of strict liability in tort to apply to a lessor of personalty, the lessor should be found to be in the business of leasing, in the same general sense as the seller of personalty is found to be in the business of manufacturing or retailing.” (Price, supra, 2 Cal.3d at p. 254.) Also, privity is not required for strict products liability. (See Elmore v. Am. Motors Corp. (1969) 70 Cal.2d 578, 586 [strict products liability extends to bystanders].)

While the undisputed material facts show that Defendant was not involved in the design, manufacture, marketing, or distribution of the brake system on the subject vehicle, the undisputed material facts do show that Defendant was engaged in the business of leasing vehicles. (UMF 1-8, 11, 13-16.) Renting or leasing vehicles that contain defects is a potential basis for strict products liability. (See Price, supra, 2 Cal.3d at p. 254; Westlye, supra, 17 Cal.App.4th at p. 1747.) There also is no dispute that Defendant leased the subject vehicle that allegedly caused Plaintiff’s injuries. (UMF 1-7.) Defendant also presented no evidence, admissible or otherwise, showing that the subject vehicle had no defects when it left Defendant’s control. (See UMF 1-7; see Johnson, supra, 240 Cal.App.4th at p. 33.) Even if the Court did not sustain Plaintiff’s objections to Mark Young’s and Paul C. Kwong’s declarations, it would not change the outcome here because Mark Young only states that the vehicle was inspected after the accident. (Young Decl., ¶ 4; Kwong Decl., ¶ 9.)

Additionally, even if the burden had shifted to Plaintiff, Plaintiff's declaration states that the brakes did not work and are what led to the accident. (Scigliano Decl., ¶¶ 4-13.) The undisputed material facts also indicate that the accident occurred approximately 10 days after the vehicle was leased, which would create a triable issue of fact concerning whether the brakes in the subject vehicle were defective when the vehicle left Defendant's control. (UMF 1, 7; see Johnson, supra, 240 Cal.App.4th at p. 33.)

Based on the foregoing, the Court finds Defendant failed to establish the absence of a triable issue of material fact as to the First Cause of Action for strict products liability. Given that Defendant only moved for summary judgment, the only other basis upon which the Court can grant summary judgment is based on the affirmative defense of the Graves Amendment, which the Court will address below. (See Notice, pp. 1-2; Homestead Sav. v. Superior Ct. (1986) 179 Cal.App.3d 494, 498 [court must deny summary judgment if there are any triable issues of fact and the motion only seeks summary judgment; court may not summarily adjudicate issues not requested in the notice of motion].)

Affirmative Defense – Graves Amendment

Under the Graves Amendment, a rental car owner is not liable under state law for harms resulting from the use, operation, or possession of the vehicle during the rental period, provided the owner did not engage in negligence or criminal wrongdoing. (See 49 U.S.C., § 30106, subd. (a).) "The Graves Amendment preempts state laws, such as Vehicle Code section 17150, which impose vicarious liability on the owners of leased or rented vehicles based solely on their ownership. [Citations.]" (Tavares v. Zipcar, Inc. (2026) 118 Cal.App.5th 219, 236-237 (Tavares).)

Defendant contends Plaintiff has presented no evidence and made no showing that Defendant was independently negligent or engaged in criminal wrongdoing.

The Court finds Defendant failed to establish the absence of a triable issue of material fact regarding the Graves Amendment affirmative defense. Plaintiff's claims against Defendant are not based only on Defendant's ownership of the subject vehicle. They are also based on Defendant having leased or rented the subject vehicle containing the allegedly defective braking system, thereby placing it in the stream of commerce. (Compl., ¶¶ 6-7, 9-10.) There is no dispute that Defendant leased the subject vehicle that Plaintiff

drove when the brakes allegedly failed to work and Plaintiff was injured as a result. (UMF 1-7.) Placing products in the stream of commerce implicates liability based on strict products liability, not mere ownership. (See Price, supra, 2 Cal.3d at pp. 252-254.)

Moreover, even if the Graves Amendment did apply to this case, it would appear to apply only to Plaintiff's strict product products liability and negligence products liability claims. Defendant has not provided any authority holding that the Graves Amendment applies to breach of express and implied warranty claims. Indeed, the Graves Amendment's preemption scope applies to liability based on ownership status, not liability from the warrantor's own promises and representations. (See Tavares, supra, 118 Cal.App.5th at pp. 236-237; cf. Ministry of Health, Province of Ontario, Canada v. Shiley Inc. (C.D. Cal. 1994) 858 F.Supp.1426, 1440 [Medical Device Amendments did not preempt fraud claim because it was based on general duty not to deceive, not on state imposed requirements]; Uddin v. Automobili Lamborghini Am., LLC (N.D. Cal. 2025) 765 F.Supp.3d 952, 969 [breach of express warranty claim "must also describe the exact terms of the warranty, allege that buyer reasonably relied on those terms, and that the breach of the warranty was the proximate cause of the buyer's injury"]; see Price, supra, 2 Cal.3d at pp. 252-254 [liability for vehicle rental business].) Thus, since the affirmative defense, if applicable, would not dispose of the entire action, Defendant is not entitled to summary judgment and summary adjudication was not requested.

Further, Defendant has not established that there is no triable issue of fact as to whether Defendant was negligent with respect to the maintenance of the vehicle, which such negligence would allow for liability even under the Graves Amendment. Further, Plaintiff states that the deposition of Defendant's person most knowledgeable has not been taken and documents not produced relating to the maintenance, repair and condition of the vehicle despite Plaintiff's request for such information and that this information could provide further evidence in opposition to the motion. (Daley Decl., ¶ 6.) Hence, this also provides a separate basis for the Court to deny the motion.

Based on the foregoing, the Court DENIES Defendant's motion for summary judgment.

CONCLUSION

The Court DENIES Defendant/Cross-Complainant Quinn Company's Motion for Summary Judgment.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.